

26STCV12956 26STCV12956

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV12956 Hearing Date: August 6, 2026 Dept: 836

APPLICATION FOR WRIT OF POSSESSION

Date: 8/6/26 (1:30 PM)

Case: Financial Pacific Leasing Inc. v. Eduardo A. Pinkus, et al. (26STCV12956)

TENTATIVE

RULING:

The Application for Writ of Possession by plaintiff Financial Pacific Leasing Inc. as to defendant Eduarado A. Pinkus dba Exclusive Tree Services, is DENIED. The Court finds that plaintiff has not established the probable validity of its claim to possession of the property, namely, a 2014 Chrysler RAM Truck 5500 (VIN: 3C&WRMDL3EG116536).

On July 18, 2022, defendant Eduardo A. Pinkus dba Exclusive Tree Services entered into a written Equipment Finance Agreement (the "Agreement") with non-party TF Group Inc, wherein TF Group Inc. financed the purchase of a 2014 Chrysler RAM Truck 5500 (VIN: 3C7WRMDL3EG116536). (Williams Decl. ¶ 5 & Ex. 1.) The Agreement grants the Creditor a security interest in the equipment financed by the Agreement, and, under "REMEDIES," the Agreement provides that, upon default, the Creditor may "take possession" of such items. (Williams Decl. Ex. 1 at ¶¶ 1, 14.)

Defendant executed a personal guaranty, wherein defendant guaranteed Exclusive Tree Services' timely payment and performance of all

obligations under the Agreement. (Williams Decl. ¶ 6 & Ex. 1 at pg. 3.)

Defendant Branda Pinkus also signed the same personal guaranty. (Williams Decl. ¶ 7 & Ex. 1 at pg. 3.)

On July 14, 2022, non-party TF Group Inc. entered into an agreement with plaintiff Financial Pacific Leasing Inc., purportedly assigning its rights associated with an Equipment Financing Agreement dated July 11, 2022 between it and defendant. (Williams Decl. ¶ 8 & Ex. 2.)

Plaintiff claims that, on or before September 20, 2022, it perfected its security interest in the subject vehicle by recording a lien against the vehicle title with the California Department of Motor Vehicles. (Williams Decl. ¶ 9 & Ex. 3.)

On September 1, 2025, defendant defaulted on the terms of the Agreement. (Williams Decl. ¶ 10.) The balance due under the Agreement, exclusive of late charges and other fees, is \$39,233.22. (Williams Decl. ¶ 11.) Plaintiff has demanded a return of the subject vehicle from defendant per the Agreement, but defendant has refused to comply, retaining the subject vehicle for his own benefit. (Williams Decl. ¶ 20.)

Despite defendant's default under the Agreement, plaintiff's evidence does not establish it has a probably valid claim that defendant has improperly retained possession of the subject equipment. In support of its claim against defendant, the assignment of rights upon which plaintiff relies refers to an Equipment Finance Agreement other than the one that plaintiff contends is in default, namely, the Agreement, dated July 18, 2022. (Williams Decl., Exs. 1-2.) Instead, the assignment of rights to plaintiff refers to an agreement dated July 11, 2022.

Furthermore, even if the assignment of rights to plaintiff correctly to the July 18, 2022 Agreement, it would nonetheless be unclear how an assignment of rights pursuant to a July 14, 2022 agreement could be made before any such rights would have existed pursuant to the subsequent July 18, 2022 Agreement. Thus, because there is substantial doubt as to whether plaintiff has any rights under the July 18 2022 Agreement, the Court does not find on this record that plaintiff has demonstrated any probable validity of its claim.

For the foregoing reasons, the Application is DENIED.